

Prahlad Singh v. Dashchianchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 11 July 2018 · Writ - C No. 23332 of 2018 · **Writ disposed; relegated to clause 6.5; recovery stayed one month.**

HEADNOTE

Petitioner challenged a recovery citation of Rs 2,50,923 on the plea that a 7.5 HP pumping-set connection had been billed as 10 HP. The Division Bench held that objection to the recovery lies before the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005, disposed of the writ with a direction to consider a time-bound objection, and stayed coercive action for one month or until that decision, whichever was earlier.

FACTUAL SUMMARY

Prahlad Singh claimed that in 2006 he was allowed a 7.5 HP connection for a private pumping set, which was finally installed in 2009. On 25 May 2018 the distribution licensee issued a recovery citation for Rs 2,50,923. He contended the bill treated the connection as 10 HP rather than 7.5 HP, so the citation was illegal and no recovery could be made. Counsel for the petitioner and for the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection to recovery citation

HOLDING

A consumer who challenges a recovery citation on the ground that the billed load is incorrect has a remedy of representation/objection before the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. The writ court will not decide that billing dispute on merits; if the objection is filed within a week with a certified copy of the order, the Executive Engineer shall consider it and pass an appropriate order within one month, and coercive recovery is stayed for one month or until that decision, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S CONNECTION WAS 7.5 HP OR 10 HP, AND WHETHER THE RECOVERY CITATION OF RS 2,50,923 WAS LAWFUL

¶ 1